

26PR00255 Matter of Anthony Martinez Espinoza

County: santa-barbara

Division: Minor/Disabled Person's Compromise

Hearing date: 2026-07-08

Motion: Minor's Compromise

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Tentative Ruling: Matter of Anthony Martinez Espinoza

Case Number

26PR00255

Case Type

Minor/Disabled Person's Compromise

Hearing Date / Time

Wed, 07/08/2026 - 09:30

Nature of Proceedings

Minor's Compromise

Tentative Ruling

Probate Notes:

Personal (in-person) appearances required, including the minor. (CRC 7.952.)

The following must be submitted before petition may be approved:

Supplement re: Full Recovery. Adequate documentation that the minor has fully recovered, or is expected to fully recover from his injuries. The attachments supporting the allegation at paragraph 8 of the petition do not support a finding that the minor will fully recover.

Supplement re: Insolvency of Defendant. Adequate evidence of sufficient investigation into the solvency of the settling defendant above the policy limits of the settling insurance company. There are no facts alleged that defendant cannot meet a

judgment past the policy limits.

Supplement Showing Good Cause for Proposed Distribution. The proposed structured settlement includes a payout date far past the minor's 18th birthday. It is the policy of this court to place funds in a blocked account. (Local Rule 1735—"Absent a showing of good cause, it is the policy of the Court to order all funds disbursed to a minor be deposited into a blocked account.")

Furthermore, this Court arguably does not have jurisdiction to make any order for payment of a settlement past a minor's 18th birthday, as the Court can only approve a "single-premium differed annuity" purchased by a "one-time lump-sum premium" with "no penalty" for early withdrawal 5 years past a minor's 18th birthday, pursuant to Probate Code sections 1446, 3413, 3500, 3610, 3611, & 3612.

This arguably means ordering a payout past the minor's 18th birthday would be in excess of the court's jurisdiction, especially more than five years past the 18th birthday, and also since the minor may, as a matter of practice, obtain the funds through assignment (often for a very reduced rate) at 18, or arguably void the contract (incurring tax penalties). Further briefing should include discussion about whether the minor will need to access funds before their 18th birthday, and whether the circumstances of this case should persuade the court to allow extension of the annuity past the 18th birthday (i.e. susceptibility to fraud, undue influence, etc.).

Judges

Judge Denise M. Hippach

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